

Boulder County Jail Adult Custody Form

(Form Must be Complete)

Arresting Agency Case #: 150014751	Arresting Agency: Boulder Police Department
Arresting Officer's Full Name: COON,STEPHEN	Arresting Officer's Number: 7152 DATE FILED: November 16, 2016
Does Arrestee Posses government issue I.D.? Yes ☒ No ☐	Type: Social Security Number # 608647380
Is Arrestee to be booked and released? Yes ☒ No ☐	Per Arresting Officer: COON,STEPHEN

Biographic Information

DOCKETED

Inmate's Name: NIMER Last:	First: DAVID	Middle: G	DOB: 05/31/1991
Alias Name:			Alias DOB:
Sex: M	Race: WHITE	Ethnicity: NOT OF HISPANIC	Height: 603
Weight: 175	Hair: BRO	Eyes: BRO	Marital: Single
POB City: OAKLAND	State: CALIFORNIA	Country: USA	
SSN: 608647380	Driver / I.D. (State & #):		
Home Address: 1700 17TH ST #B1		City: BOULDER	
State: CO	Zip: 80302	Phone: H -	W -
Other - C - (650)430-6255			
Employment/School Info: ROCKY MOUNTAIN PAINTI		Occupation: SALES	
Address: 1001 SOUTH MONACO PKV City: DENVER		State: CO	Phone: (303)377-2801

Triage Questions to be asked by Arresting Agency

Has inmate made any statement or shown any behavior that you are aware of that would cause you to believe he/she may be suicidal? Yes ☐ No ☒ If Yes, provide details: ##

Medical Clearance: Yes ☐ No ☒ Medication Required: Yes ☐ No ☒
Hospital: Name:

List any medical conditions the arrestee has that you are aware of:

None

100277947

Which best describes arrestee's behavior with arresting/transporting officers...

Cooperative ☒ Non-response ☐ Verbally antagonistic ☐ Combative ☐

Any other information you are aware of that would be useful for inmate management.

None

Have you seen any indication that the arrestee suffers from any mental illness?

None

Arrest Information

Location Arrest: **800-BLK MARINE ST, BOULDER**Location Offense: **1000-BLK MARINE ST, BOULDER**Date of Arrest: **11/14/2015**Time of Arrest: **23:36:00**Date of Offense: **11/14/2015**Time of Offense: **23:15:00**

Associated Vehicle Information

Year: **2001**Make: **SUBARU**Model: **OUT**Color: **MAROON**VIN#: **4S3BE656016215189**Impounded? Yes ☐ No ☒ Impounded by (agency/officer): **Boulder Police Department / COON,STEPHEN**

Arrestee Vehicle Location or Towing Company:

License State: **CO**License Type: **TEMPORARY TAGS**License Number: **599068N**

Exp. Date:

Damage / Condition:

Victim Information

Is this a Domestic Violence related arrest?: Yes ☐ No ☐Does any victim wish to be notified upon arrestee's release?: Yes ☐ No ☐

If yes, provide the following information: (Victim PIN# If Known)

Name:

Victim (1) PIN#:

DOB:

Sex:

Race:

Address:

City:

State:

Phone # Home:

Work:

Other:

Are there additional victim notifications?

Yes

No

If yes, use additional information below

Name:

Victim (2) PIN#:

DOB:

Sex:

Race:

Address:

City:

State:

Phone # Home:

Work:

Other:

PROBABLE CAUSE ARREST AFFIDAVIT

3

Case #: 150014751

Arrestee: NIMER, DAVID G

DOB: 05/31/1991

I, COON, STEPHEN, swear under penalty of perjury that there is probable cause for the arrest of the above named individual for the charge(s) stated in the attached document; that the facts are true and correct to the best of my knowledge, information, and belief; and that the facts supported the arrest of the defendant.

Of Coon 7152
Law Enforcement Officer's Signature

FILED IN THE 20TH
JUDICIAL DISTRICT

NOV 16 2015

Of Coon 7152
Law Enforcement Officer's Printed Name

Law Enforcement Agency: Boulder Police Department
BOULDER COUNTY, CO

I have reviewed the above materials and determined that:

- ☐ They contain probable cause for the arrest of the above named individual.
- ☐ They do not contain probable cause for the arrest of the above named individual and he/she is ordered released on a personal recognizance bond.

BOND AMOUNT AND CONDITIONS

AMOUNT: \$

Type: ☐ Cash/Surety/Property
☐ Personal Recognizance
☐ Co-signed PR Bond

BOND CONDITIONS:

- ☐ None
☐ No Contact With: _____

☐ No Contact Includes Victim Child(ren)
☐ Pretrial Supervision
☐ Report to Probation (within 24 Hours of release)
☐ Substance Abuse Monitoring (as determined by
Community Justice Services)
☐ Drug Testing
☐ Other Conditions: _____

- ☐ No Alcohol
☐ No Non-prescribed Drugs
☐ Posses No Weapons
☐ Further Bond Evaluation
☐ No Driving
☐ No Driving Without Valid License
☐ No Contact With Anyone Under 18 Years of Age
☐ Sobriotor
☐ Pretrial EHM
☐ Pretrial EHM With Sobriotor

Date

Time

Judge/Magistrate

Arresting Agency Case Number: 150014751

Charges

# 1 - Statute (literal): 42-4-1301(1)(A)	Charge (literal): DUI	
Charge Level: Misdemeanor - Unclassified	Jurisdiction: Boulder PD	Bond \$:
Warrant # / Dkt #:	Summons #: TS137491	
# 2 - Statute (literal): 42-4-1301(2)(A)	Charge (literal): DUI PER SE	
Charge Level: Misdemeanor - Unclassified	Jurisdiction: Boulder PD	Bond \$:
Warrant # / Dkt #:	Summons #: TS137491	
# 3 - Statute (literal): 42-4-1409(3)	Charge (literal): FAILED TO PRESENT EVIDENCE OF INSURC	
Charge Level: Misdemeanor - Class 1	Jurisdiction: Boulder PD	Bond \$:
Warrant # / Dkt #:	Summons #: TS137491	

Narrative

In accordance with State Law the County Attorney's Office has determined that juvenile names can not be released to the public.

Will you mention a Juvenile Name: Yes ☐ No ☒ Arresting Agency Case Number: **150014751**

Synopsis

This report will document the arrest of David Nimer for DUI. On 11/14/2015 at approximately 2315 hours, Nimer was stopped in the 800 block of Marine St. in the City and County of Boulder, State of Colorado. He was subsequently arrested for DUI.

This case is cleared with an adult arrest.

Narrative

On 11/14/2015 at approximately 2315 hours, Ofc. M. Smyth observed a maroon Subaru Outback with a Colorado temporary registration of 599068N, westbound on Marine St. from 11th. While he was behind this vehicle, Ofc. Smyth saw a Pabst Blue Ribbon beer can thrown from the driver's side of the vehicle. Ofc. Smyth stopped the Subaru on Marine, just west of 9th and contacted the driver who was identified by his Colorado Driver License as David Garibotto Nimer with a date of birth of 05/31/1991.

During Ofc. Smyth's contact with Nimer, he observed the odor of an alcoholic beverage on Nimer's breath. Nimer's movements were deliberate and he appeared thick fingered. His speech was slurred and slow. Ofc. Smyth requested a cover officer for a possible DUI and I responded.

On my arrival, I saw that there was not enough room between Ofc. Smyth's marked patrol vehicle (Unit 2532) and the vehicles parked on the westbound side of the roadway to allow traffic to pass. I stopped my patrol vehicle (Unit 1869) so that it completely blocked the westbound roadway and would allow me an area in the roadway to complete roadside maneuvers. I spoke with Ofc. Smyth and he told me the reason that he had stopped Nimer as well as the indicia that he had observed. I spoke with Nimer who was seated in the driver seat of the Subaru with papers in his lap. When I first contacted Nimer, he handed me the Colorado Bill of Sale for the Subaru and said, "Here is the registration." I handed this back to Nimer and told him that it was the bill of sale. He said that it was the only thing that he could find. I told Nimer to put the paperwork away and step out of the vehicle to speak with me.

When he did so, I instructed him to the center of the street. When we arrived there, I confirmed that Nimer knew the reason that he had been stopped. He said that his friend had thrown a beer can out of the window of the car. He turned to Ofc. Smyth and asked how his driving had been because he thought that it had been good. I also told Nimer that I could smell alcohol and he voluntarily advised that he would do roadsides. I told him that they were voluntary and he did not have to complete them but that I would like him to complete the voluntary roadside maneuvers. Nimer said that he would do them.

Nimer did not conduct the voluntary roadside maneuvers in the manner of a sober driver. I handcuffed him and advised him that he was being arrested for driving under the influence of alcohol. While I was doing this, Nimer asked what he had not done properly on the maneuvers. I explained that it was a combination of the maneuvers as opposed to one specific thing that he had not done right. As I was walking him back to my patrol vehicle, Nimer said that he should not have been driving but that the last time, they arrested him for DUI, they charged him with DWAI. He said that he should not have been driving but that he knew that he would blow below the DWAI limit. After Nimer was placed in the rear passenger area of my patrol vehicle, I read him the expressed consent. Nimer agreed to a breath test.

Nimer was offered the option of his vehicle being parked on Marine or having it towed. He requested that it be parked. Ofc. Smyth parked the vehicle and supplied me with the temporary registration number. He also advised me that the only insurance paperwork in the vehicle showed an expiration date of 10/10/2015.

I transported him to the Boulder Police Department. Nimer gave breath samples at approximately 0018 and 0022 hours on 11/15/2015. The results of these samples were 0.128 g/210L.

I transported Nimer to the Boulder County Jail. I issued summons #TS137491, charging him with DUI, DUI Per Se, and Fail to Present Evidence of Insurance. Nimer was booked and released with a court date.

FILED IN THE 20TH
JUDICIAL DISTRICT
NOV 16 2015

BOULDER COUNTY, CO

Revised: October 2007

